

THE SMITH FAMILY REVOCABLE TRUST AGREEMENT

Document type: Trust Agreement

Test fixture — A — Scenario A — Nested LLC + Revocable Trust

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THE SMITH FAMILY REVOCABLE TRUST

This Trust Agreement is made and executed this 5th day of September, 2017, by JAMES ROBERT SMITH (hereinafter referred to as both "Grantor" and "Trustee"), a citizen of the United States of America, residing at 2847 Laurel Canyon Boulevard, Los Angeles, California 90046.

ARTICLE 1 — CREATION OF TRUST

The Grantor hereby creates a revocable living trust to be known as THE SMITH FAMILY REVOCABLE TRUST (the "Trust"), for the benefit of the Grantor and his family during his lifetime and for distribution of assets upon his death as provided herein.

— TEST FIXTURE — SYNTHETIC DOCUMENT — NOT A LEGAL INSTRUMENT —

ARTICLE 2 — TRUST PROPERTY AND ASSETS

Section 2.1 — Initial Funding. The Grantor hereby transfers and assigns to this Trust all property described in Schedule A attached hereto, including a one hundred percent (100%) membership interest in Apex Holdings LLC, a Wyoming limited liability company.

Section 2.2 — Management. The Trustee shall manage and invest the Trust property with the care, skill, and caution that a prudent investor would exercise in managing the overall portfolio.

Section 2.3 — Income. All net income of the Trust shall be distributed to or for the benefit of the Grantor during his lifetime.

— TEST FIXTURE — SYNTHETIC DOCUMENT — NOT A LEGAL INSTRUMENT —

ARTICLE 3 — REVOCABILITY

Section 3.1 — Right of Revocation. During the lifetime of the Grantor, this Trust shall be fully revocable. The Grantor, JAMES ROBERT SMITH, may at any time and from time to time revoke this Trust Agreement in whole or in part, amend any of its terms, or withdraw any property from the Trust corpus, by delivering written notice to the Trustee.

Section 3.2 — Tax Treatment. Because this Trust is revocable, JAMES ROBERT SMITH is treated as the owner of all Trust assets for federal and state income tax purposes and for all regulatory reporting purposes, including FinCEN beneficial ownership certification requirements. For purposes of beneficial ownership determination, James Robert Smith is the beneficial owner of all assets held by this Trust.